

Order No: 6 of Maintenance Services Framework Agreement FWA-03-R2P

Date: 25 Nov 2025

Parties:

Name **Downer EDI Rail Pty Ltd ACN 000 002 031**
(Downer)
Address Level 1, T1, Triniti Business Park, 39 Delhi Rd, North Ryde, NSW 2113

Name **R2P-Asia Pacific Pty Ltd ACN 009 177 986**
(Service Provider)
Address Unit 5 / 18 Lexington Drive Bella Vista NSW 2153 Australia

Introduction

- A.** The **Service Provider** and **Downer** entered into a Framework Agreement dated 1 July 2021 (**Agreement: FWA-03-R2P**).
- B.** The **Service Provider** and the **Downer** agree to the following variations of the Contract as set out in this Agreement.
- C.** In accordance with **clause 26.6** of the **Contract**, the parties enter into this **Agreement** to record the variations agreed since the execution of the **Contract**.

Operative Provisions

1. Definitions and interpretation

1.1 In this Agreement:

Variation Date means the date of execution of this Agreement by the last party signing.

1.2 Words defined in the **Contract** have the same meaning when used in this Agreement

1.3 The rules for interpreting the Agreement as contained in clause 1 of the **Contract** also apply in relation to this Agreement.

2. Variation

2.1 On and from the Variation Date, in respect of the additional Services required, the **Contract** is varied as set out in Schedule A of this Agreement.

3. Acknowledgment

3.1 Except to the extent varied by this Agreement, the **Contract** continues to apply in accordance with its terms. For the avoidance of doubt both the Purchaser and the Supplier acknowledge and agree that the **Contract** will remain on foot for the purpose of this Agreement.

3.2 The Supplier repeats the warranties/undertakings and acknowledgements contained in the **Contract**.

4. Costs

Each party will pay its own costs, including legal costs, in relation to the preparation of this Agreement.

5. Order of Precedence

Any inconsistency between the documents contained within this Agreement and the **Contract** are to be resolved in accordance with the execution date of those agreements.

ORDER

This Order is issued under and governed by the terms and conditions agreed between Downer EDI Rail Pty Ltd (**Downer**) and r2p Asia-Pacific Pty Ltd (**Service Provider**) under the Maintenance Services Agreement **FWA-03-R2P** dated 1 July 2021 ("**Agreement**").

This Order is comprised of the following:

- (a) The Order Details
- (b) Schedule 1 of Order – Services and Specifications
- (c) Schedule 2 of Order – Price & Payment Schedule
- (d) Schedule 3 of Order – Price Review Formula
- (e) Schedule 4 of Order – Head Contract Requirements
 - a. Annexure A – Statement of Work (Subsystem) CES01230 WTP TLS Contract Checklist
 - b. Annexure B – Clause 48 of WTP TLS Contract (and related references)
 - c. Annexure C – Escrow Deed
- (f) Schedule 5 of Order – Special Conditions
- (g) Schedule 6 of Order – KPI's
- (h) Schedule 7 of Order – Reporting Obligations

and includes any document expressly identified therein as forming part of this Order.

ORDER DETAILS

#	ITEM	DESCRIPTION
1	Parties	Downer
		Representative: Enrique Perez
		Email: Enrique.Perez@downergroup.com
		Address: Level 3, T1, Triniti Business Park, 39 Delhi Rd, North Ryde, NSW 2113
		Phone: +61 0412 410 819
		Service Provider
		Representative: Nicholas Alexiou
		Email: nicholas.alexiou@r2p.com
		Address: Unit 5 / 18 Lexington Drive Bella Vista NSW 2153 Australia
		Phone: +61 418 422 884
2	Order Commencement Date:	The date signed by the last party
3	Order Expiry Date:	The date of the last expiring Warranty Period
4	Project	Waratah Fleet CSS Enhancement
5	Principal	Transport for New South Wales
6	Head Contract	Rollingstock PPP Through Life Support (TLS) Contract
7	Head Contract Requirements	Set out in Schedule 4
8	Services	Scope of the Services (including Goods):
		Set out in Schedule 1
9	Price	Price for the Services (including Goods)
		Set out in Schedule 2
10	Payment	Date for submission of payment claims:
		After delivery, or as agreed by both parties.

		Payment claim information:	The following documents and information must accompany all payment claims: (a) Certificates of currency for each insurance policy are required to be held pursuant to this Agreement. (b) Certificate of conformance (c) All testing certificates (d) All documentation as specified in technical documents																	
		Payment terms	Thirty days (30) days from the last day of the month in which the invoice was received.																	
11	Security	Is security required?	Yes ☒ No ☐																	
		Amount and type of security required:	Insurance bond – N/A Retention Money 5%																	
12	Warranty Period(s)	Warranty Period(s)	Components: <table><tr><th>Service Provider Part #</th><th>Description</th><th>Warranty Period</th></tr><tr><td>3008263R1</td><td>13th Cincoze PC for Digital Video, 13500TE, DS-1402 Series</td><td>24 months (plus 3 months grace period) from delivery to Service Provider</td></tr><tr><td>HDD0102042</td><td>External 15.366TB SSD (for NVR/DVR) – SSD, SATA Industrial Temperature</td><td>60 months (plus 6 months grace period) from delivery to Service Provider or 10,725 Terabyte Writes (whichever occurs first)</td></tr></table> Grace period, means the allotted timeframe permitted for delays in logistics, supply chain processes, and material receipt. Goods: <table><tr><th>Service Provider Part #</th><th>Description</th><th>Warranty Period</th></tr><tr><td>SVLNAS04</td><td>Digital Video Recorder “DVR” (Downer Preliminary Part Number: 338001421)</td><td>24 months from Downer receipt from Service Provider Location Note: Goods are priced as EXW.</td></tr></table>			Service Provider Part #	Description	Warranty Period	3008263R1	13 th Cincoze PC for Digital Video, 13500TE, DS-1402 Series	24 months (plus 3 months grace period) from delivery to Service Provider	HDD0102042	External 15.366TB SSD (for NVR/DVR) – SSD, SATA Industrial Temperature	60 months (plus 6 months grace period) from delivery to Service Provider or 10,725 Terabyte Writes (whichever occurs first)	Service Provider Part #	Description	Warranty Period	SVLNAS04	Digital Video Recorder “DVR” (Downer Preliminary Part Number: 338001421)	24 months from Downer receipt from Service Provider Location Note: Goods are priced as EXW.
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13	Meetings and reports	Frequency of reports:	Set out in Schedule 7																	
		Frequency of meetings:	As required																	
14	Applicable Law	New South Wales, Australia																		
15	KPIs	Are KPIs applicable?	Yes ☒ No ☐ Set out in Schedule 6																	
		How often will KPI's be measured and reported?	Quarterly																	
16	Quality	Applicable quality assurance standards:	As per Specification (refer to Appendix B), Industry Conventions of Best Practice regarding Coding and others as suitable for Downer continued use and assurance of its quality Compliance with EN50155 standard																	
17	Limitation of Liability	Limitation of Liability for the purposes of clause 15.2 of the General Terms and Conditions	For the purposes of clause 15.2 of the General Terms and Conditions (and subject to clause 15.2(b)), the Service Provider's liability under this Order is limited to 100% of the Contract Price.																	